भारतीय गैर न्यायिक

एक सौ रुपये

Rs. 100

रु. 100

ONE HUNDRED RUPEES

सत्यमेव जयते

भारत INDIA

INDIA NON JUDICIAL

महाराष्ट्र MAHARASHTRA ◑ 2022 ◑ 09AA 499919

29890 16 JUN 2022

अनु.क्र. .... दि. .... मु.शु.रक्कम-१००/

दस्ताचा प्रकार ५.५३

दस्त नोंदणी करणार आहेत का? होय / नाही

मिळकतीचे वर्णन .... **NIHVA TECHNOLOGIES PVT. LTD.**

मुद्रांक विकत घेणाऱ्याचे नांव .... **ABOVE RENAULT SHOWROOM. 1ST FLOOR,**

पत्ता .... **G-BLOCK, THERMAX CHOWK,**

दुसऱ्या पक्षकाराचे नांव .... **CHINCHWAD, PUNE - 411 019.**

हस्ते असल्यास त्यांचे नांव व पत्ता .... दिपक ईटे

मुद्रांकविक्रेत्याची सही

श्री. विश्वरुप रामचंद्र जाधव
परवाना क्र. २२०१९५१
प्लॉट नं. १००, से. नं. १८,
फुलेनगर, चिंचवड, पुणे-१९

ज्या कारणासाठी ज्यांनी मुद्रांक खरेदी केला त्यांनी त्याच कारणासाठी
मुद्रांक खरेदी केल्या पासून ६ महिन्यात वापरणे बंधनकारक आहे

पुणे
06 JUN 2022
प्रथम मुद्रांक लिपीक
कोषागार पुणे करिता

AGREEMENT

AGREEMENT # CIASL/MRO/4 OF 2022 – 2023

For NIHVA TECHNOLOGIES PVT. LTD.

Director

भारतीय गैर न्यायिक

एक सौ रुपये Rs. 100

रु. 100 ONE HUNDRED RUPEES

सत्यमेव जयते

भारत INDIA

INDIA NON JUDICIAL

महाराष्ट्र MAHARASHTRA ◑ 2022 ◑ 09AA 499920

16 JUN 2022

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ज्या कारणासाठी ज्यांनी मुद्रांक खरेदी केला त्यांनी त्याच कारणासाठी मुद्रांक खरेदी केल्या पासुन ६ महिन्यात वापरणे बंधनकारक आहे

अनु.क्र. .... दि. .... मु.शु.रक्कम-१००

दस्ताचा प्रकार ५-५१

दस्त नोंदणी करणार आहेत का? होय / नाही

मिळकतीचे वर्णन ....

मुद्रांक विकत घेणाऱ्याचे नांव .... NIHVA TECHNOLOGIES PVT. LTD.
ABOVE RENAULT SHOWROOM, 1ST FLOOR,
G-BLOCK, THERMAX CHOWK,
CHINCHWAD, PUNE - 411 019.

पत्ता ....

दुसऱ्या पक्षकाराचे नांव ....

हस्ते व्यक्तीचे नांव व पत्ता .... दिपक

मुद्रांक विकत घेणाऱ्याची सही

श्री. विश्वरूप रामचंद्र जाधव
परवाना क्र. ३२०११५१
प्लॉट नं. १००, से. नं. १८,
फुलेनगर, चिंचवड, पुणे-१९.

पुणे

06 JUN 2022

प्रथम मुद्रांक लिपीक
कोषागार पुणे कार्यालय.

This agreement made on this 16th day of June , 2022 (Two thousand and twenty two) between Cochin International Aviation Services Limited, a company incorporated under the Companies Act, 1956 having its a Registered Office at XI/318E, Cochin Airport Buildings, Kochi Airport P O, Ernakulam 683 111 (hereinafter referred to as "Owner" or "CIASL" or "Company" which expression shall include its administrators, successors, executors and assigns) through its Managing Director of the one part and **M/s. NIHVA Technologies Pvt. Ltd, 187 / G Block, 1st floor, Thermax Chowk, Above Renault Showroom, Chinchwad, Pune - 411019** (hereinafter referred to as the "Contractor" which expression shall include its administrators, successors, executors and permitted assigns) of the other part.

For NIHVA TECHNOLOGIES PVT. LTD.

Director

WHEREAS the CIASL is desirous of getting the work of **"Design, supply, installation, testing and commissioning of motorized Vertical lifting Fabric Hoist up Hangar door for MRO at Cochin International Aviation Services Ltd."** (hereinafter called the "work") done and had invited tender for this work as per tender documents sold for this purpose.

And whereas **M/s. NIHVA Technologies Pvt. Ltd, 187 / G Block, 1st floor, Thermax Chowk, Above Renault Showroom, Chinchwad, Pune - 411019** had offered their proposal dated 27/04/2022 and CIASL accepted their aforesaid proposal and awarded the work to **M/s. NIHVA Technologies Pvt. Ltd, 187 / G Block, 1st floor, Thermax Chowk, Above Renault Showroom, Chinchwad, Pune - 411019** on terms and conditions contained in its Letter of Award # CIASL/MRO/4 dt.17/05/2022 and the documents referred to therein, which have been accepted by **M/s. NIHVA Technologies Pvt. Ltd, 187 / G Block, 1st floor, Thermax Chowk, Above Renault Showroom, Chinchwad, Pune - 411019** resulting into a "Contract".

NOW, THEREFORE THIS DEED WITNESSETH AS UNDER:

ARTICLE 1.0 AWARD OF CONTRACT

CIASL has awarded the contract to **M/s. NIHVA Technologies Pvt. Ltd, 187 / G Block, 1st floor, Thermax Chowk, Above Renault Showroom, Chinchwad, Pune - 411019,** the work of **"Design, supply, installation, testing and commissioning of motorized Vertical lifting Fabric Hoist up Hangar door for MRO at Cochin International Aviation Services Ltd."** on terms and conditions contained in its award letter # CIASL/MRO/4 dt.17/05/2022 and the documents referred to therein. The award has taken effect **26th May, 2022**. The terms and expression used in this agreement shall have the same meanings as are assigned to them in the "Contract Documents" referred to in the succeeding article.

ARTICLE 2.0 CONTRACT DOCUMENTS

The contract shall be performed strictly as per the terms and conditions stipulated in the following documents (herein after referred to as "Contract documents")

Sl #	Document	**Page Nos.**
1.	Notice Inviting Tenders	01-06
2.	Acceptance Letter	07
3.	Tender form	08
4.	Tender	09-10
5.	Schedule A to D	11-14
6.	General Conditions of Contract (GCC)	15-96
7.	Special Conditions of Contract (SCC)	97-106
7.	Additional Special conditions of Contract (ASCC)	107-112
8.	Technical Specifications (TS)	113- 123
9.	Schedule of Quantities	124-126
10.	Letter of acceptance	01 sheet
11.	NIHVA's Letter of representation and undertaking	01 sheet
12.	CIASL's Letter of Award of work # # CIASL/MRO/4 dt.26/05/2022	04 sheets

All the aforesaid contract documents shall form an integral part of this agreement, in so far as the same or any part thereof conform to the tender document and what has been specifically agreed to by the owner in its Letter of Acceptance. Any matter inconsistent therewith, contrary or repugnant there to or any deviations taken by the contractor in his "proposal" not agreed to by the owner (in its Letter of Acceptance) or any other letter contrary to the terms and conditions of the contract

ARTICLE 3.0 CONDITIONS & COVENANTS

3.1 This Contract is **Item Rate Contract**. The scope of contract, consideration, terms of payment, period of completion, price adjustment, taxes wherever applicable, insurance, liquidated damages and all other terms and conditions are contained in the aforesaid contract documents. The contract shall be duly performed by the contractor strictly and faithfully in accordance with the terms of the agreement.

3.2 This agreement constitutes full and completed understanding between the parties and terms of the presents. It shall supersede all prior correspondence. Any modification of the agreement shall be effected only by an instrument signed by the authorized representatives of both the parties.

ARTICLE 4.0 SETTLEMENT OF DISPUTES

It is specifically agreed by and between the parties that the Courts at Ernakulam shall have exclusive jurisdiction to decide any dispute pertaining to this agreement.

ARTICLE 5.0 NOTICE OF DEFAULT

Notice of default given by either party to the other party under the agreement shall be in writing and shall be deemed to have been duly and properly served upon the parties thereto if delivered against acknowledgement due addressed to the signatories at the addresses mentioned here above.

ARTICLE 6.0 PAYMENT

All payments due to the contractor under this agreement shall be only by crossed 'Account Payee' cheques drawn in favour of the contractor.

ARTICLE 7.0 STATUTORY LEVIES

TDS under the Income Tax Act and Tax on works contract as per GST Act and other statutory levies, if any, applicable will be deducted from contractor's bill before releasing the payment

This contract agreement is allotted the # CIASL/MRO/4

This agreement takes effect from 16th June. 2022

In WITNESS WHEREOF, the parties through their duly authorized representatives have executed these presents (execution whereof has been approved by the competent authorities of both the parties) on the day, month and year first above mentioned.

Contractor's Signature **Owner's Signature**

For NIHVA TECHNOLOGIES PVT. LTD.

Name & Designation Director **Name & Designation**

Witness

1.